

Editorial

Don't Piss Me Off!

I DON'T KNOW who Vipin Saxena is, but he pisses me off!

Saxena, who operates from the upscale Mumbai neighbourhood of Nepean Sea Road, sent me an error-ridden SMS recently that read: "CAD/ProE/iDEA AutoCAD, AMDT Corporate Class Engg.Drawing Classes Excelant dEsign Engg.Software". This was followed by three telephone numbers and an e-mail ID that asked me to buy the software and services he sells. To cut to the chase, I had received spam, or spam SMS.

Since I did not know Vipin Saxena from Adam, I called him, and asked him why he sent me the SMS. He said it was a promo SMS. Well, d-uh!

"Where did you get my number from?"

"I send promo SMSes to random numbers."

"Can you tell me who gave you my number, and also give me your details so I can register a police complaint against both?"

"Of course," he said, and sent another SMS with his address and telephone numbers.

He also told me—very politely—to go ahead and register a complaint. I realised that I was not the only one he had angered, and that he must be getting several such phone calls from "aggrieved parties". He was used to it.

Pavan Duggal, India's leading authority on laws that govern information technology, sympathised with me on this, but told me plainly that Saxena can very well tell me to go to the police because under the Information Technology Act 2000 of India, I cannot register an FIR against him for invading my privacy, nor can I sue him for sending me spam SMSes. The Indian IT Act 2000, while being stringent on e-commerce transactions, maintains a deafening silence on privacy and spam. Saxena knows it.

Saxena represents a band of IT Act manipulators who know spam is immoral and unethical, but not illegal. I don't know a single person who does not receive SMS or e-mail spam. Yet, we only either privately crib about it, or ignore it as another fact of life.

Harsh Pathak, who recently got good press because he filed a PIL against telemarketing calls, missed out on spam e-mail and SMS. Why Pathak appealed only against voice calls and not against SMSes, may remain a mystery, but Duggal emphatically states that spam



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too should be brought under the ambit of civil and criminal liability. Right now, though, there is no legal recourse against spam of any kind in India.

The time has come to join hands against spammers. We could start waging small battles like calling each spammer back and giving him a piece of your mind until he cringes; and if we keep waging these small battles, we may just win the war.

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